

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE UNIFIED DEVELOPMENT CODE (UDC) OF THE CITY OF CHEYENNE, WYOMING, TO TABLE 5-1: ZONING DISTRICT USES IN UDC SECTION 5.1.4, DISTRICTS AND USES, AMENDING THE PERMISSIBILITY OF VARIOUS USES.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. That the intent of this text amendment is to amend the permissibility of uses allowed within the City’s zone districts.

Section 3. That on February 22, 2022, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 4. That Table 5-1: Zoning District Uses in UDC Section 5.1.4, Districts and Uses is amended as shown in Attachment A, consisting of three (3) pages, which is attached hereto and incorporated herein.

Section 5. The aforementioned sections of the UDC are hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: February 14, 2022

SECOND READING: February 28, 2022

THIRD AND FINAL READING: March 14, 2022

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																								
Residential Uses																								
Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P			P				
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P			P				
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P			P				
Cottage Lots				C	C	C	C	P	P			P				P	P			P				
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C		P				
Dormitories					C	A						P				P	P			P				
Multi-dwelling Building ("Apartment")				C	P ^P		P/C	P			C					P/C	P	P		P				
Live/Work				C	P		C	A	P	P	P					P	P	P		P				
Mixed-use Dwelling										P	P	P				P	P	P		P				
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A			P				
Urban Loft Building									C	P	C	C				C	P			P				
Manufactured housing parks		C		C	C	C														P				
Civic Uses																								
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A		P				
Community Assembly (350 - 1000 maximum occupancy)											A	A	P	C		C	A	A	A	P				
Cemeteries	A										A	A	P	C		C	A	A	A	P				
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A		P				
Educational facilities											P	P			P		A	A		P				
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A		P				
Developed Athletic Field or Stadium											C		C		C		C	C		P				
Service Uses																								
Service Business - Limited										P	P	P				A	P	P		P				
Service Business - General										C	P	P				C	C			P				
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P		P				
Animal Care - Kennel	P	C									P		P							P				
Animal Care - Hospital / Clinic	C	C								C	P	C					C			P				
Child Care, In Home - Minor	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P		P				
Child Care, In Home - Major	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P		P				
Child Care, Center - Minor	A	C	A							P	P	P				C	P	P		P				
Child Care, Center - Major	C	C	C							P	P	P					P	P		P				
Emergency Shelter											P		C											
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P		P				

P = Use permitted by right
(blank = prohibited use)

A = use permitted after administrative review

C = Use permitted after conditional discretionary review

Planned District - uses subject to a development plan

Federal Property - No City authority over uses

Overlay District - uses subject to base zoning district

Overlay District - uses subject to base zoning district

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▼ CATEGORY OF USES / SPECIFIC USES																								
Services Uses (cont.)																								
Entertainment, Outdoor Recreation Facility	C	C	C	C	C	C	C	C	C	C	C	A	C	C	A	C	C	C		P				
Entertainment, Venue (1000+ maximum occupancy)	C	C	C								A	A	C		A		C	C		P				
Entertainment, Amusement, Recreation—Other	C	C	C								C	C P	C	C	C		C	C		P				
Lodging, Bed and Breakfast	P	A	A	C	C	C	C	A	P							P	P	P		P				
Lodging, Hotel / Motel											P	P					P	P		P				
Medical Care, Clinic and Office										P	P	P				C	P	P		P				
Medical Care, Office										P	P	P					P	P		P				
Medical Care, Hospital															P			P		P				
Mini Storage					C	C					P	C	P	P		C	C	P						
Storage, Yard													C	P						P				
Employment Uses																				P				
Home occupations	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P		P				
Office – Limited (<3,500)					C	A		C	A	P	P	P	P	P		P	P	P		P				
Office – general (3,500 – 20K)						C				C	P	P	P	P		A	P	P		P				
Office – Major Office Complex (>20K)											P	P	P	P			P	P		P				
Commercial Uses																								
Convenience Retail / Corner Store (<2k)										P	P	P	P			A	P	P		P				
Neighborhood Retail (2K - 5K)										P	P	P	P			A	P	P		P				
General Retail (5K - 25K)											P	P	P				P	A		P				
Large-scale Retail (25K - 100K)											P	P	P				P	C		P				
Warehouse Retail (> 100K)											P	P	P				P			P				
Grocery Store <45K										P	P	P	P				P	P		P				
Supermarket > 45K											P	P	P				P	C		P				
Outdoor Sales, Limited										A	P	A				A	A	A		P				
Outdoor Sales, Seasonal										C	A	C				C	C	C		P				
Outdoor Sales, Event or Display Area										C	A	C				C	C	C		P				
Outdoor Sales											C		C	C			C			P				
Bars and liquor stores										C	C	P			A		C	C	P	P				
Automobile Service Repair										C	P	C	P	P			C	C		P				
Automobile Service Station - Limited										C	P	C	P	P			C	C	P	P				
Automobile Service Station - General											P	C	P	P				C		P				
Automobile Service Station – Large-scale											C		C	P						P				

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▼ CATEGORY OF USES / SPECIFIC USES																								
Commercial Uses (cont.)																								
Food Service – Limited (under 2K)										P	P	P				P	P	P	P	P				
Food Service – general (2K – 4K)										C	P	P					P	P	P	P				
Food Service – Large-scale (over 4k)											P	P					P	P		P				
Industrial Uses																								
Limited Industrial										A	A	P	P	P	P	A	P	P		P				
Moderate Industrial												C	P	P			C	P		P				
General Industrial													C	P						C				
Industrial														C						C				
Limited Outdoor Storage													P	P	C			A		C				
Outdoor Storage													C	P				C		C				
Impoundment Yards													P	P			C	C		C				
Salvage yards													C	C						C				
Junk yards														C						C				
Pet crematory													€							€				
Air cargo terminals																			P	C				
Aircraft sales, repair, service, storage and relating uses																			P	C				
Railroad yards and maintenance buildings													P	P						C				
Public Service Uses																								
Commercial and Public Parking Facility												P			P		P	P		P				
Government Facility										P	P	P	P	P	P	P	P	P	P	P				
Military																			P	P				
Recycling Services											C		P	P			C	C		P				
Transportation facilities											C		P	P	P				P	P				
Utility Stations	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P				
Agriculture Uses																								
General Agriculture	P																		P	P				
Limited Agriculture	P	P																	P	P				
Agricultural equipment or product sales	C																			P				
Commercial stables, arenas, and show barns	C	C																		P				
Nurseries, landscaping	P	€ P									C		P	P			C			P				
Work Camps		C																		P				

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